

The Bihar Contingency Fund Rules, 1953

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State of Bihar - Act

The Bihar Contingency Fund Rules, 1953

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The Bihar Contingency Fund Rules, 1953

Rule THE-BIHAR-CONTINGENCY-FUND-RULES-1953 of 1953

Published on 4 March 1953

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The Bihar Contingency Fund Rules, 1953

Published vide Bihar Gazette, Notification No. 2803, dated the 4th March, 1953

1.

These Rules may be called the Contingency Fund of Bihar Rules, 1953.

2.

The Contingency Fund of Bihar shall be held on behalf of the Governor of Bihar by the Secretary to the Government of Bihar, Finance Department.

3.

All applications for advances from the Fund shall be made to the Secretary to the Government of Bihar, Finance Department. The applications shall give-

(i)

brief particulars of the additional expenditure involved,

(ii)

the circumstances in which provision could not be included in the budget,

(iii)

why its postponement is not possible,

(iv)

the amount required to be advanced from the Fund with full cost of the proposal for the year or part of the year, as the case may be, and

(v)

the grant or appropriation under which supplementary provision, will eventually have to be obtained.

4.

Advances from the Fund shall be made for the purposes of meeting unforeseen expenditure including expenditure on a new service not contemplated in the Annual Financial Statement.

5.

A copy of the order sanctioning the advance, which shall specify the amount, the grant or appropriation to which it relates and give brief particulars by sub-heads and units of appropriation of the expenditure for meeting which it is made, shall be forwarded by the Finance Department to the Accountant General, Bihar.

6.

[

[Substituted vide Notification No. B.T.-81/67-7109-F, dated 10th October, 1967, published in the Bihar Gazette part II dated 20.12.1967.]

(1)

Supplementary estimates for all expenditure so financed shall be presented to the State Legislature at the first session meeting immediately after the advance is sanctioned unless such advance has been resumed to the Contingency Fund in accordance with the provisions of sub-rule (2).

Note 1. - While presenting to the State Legislature estimates for expenditure financed from the Bihar Contingency Fund a note to the following effect shall be appended to such estimates:

"A sum of Rs. has been advanced from the Bihar Contingency Fund in and an equivalent amount is required to enable repayment to be made to that Fund."

Note 2. - If the expenditure on a new service not contemplated in the Annual Financial Statement can be met wholly or partly, from savings available within the authorised appropriation, the full amount will be advanced from the fund and the note appended to the estimate submitted shall be in the following form:

"The expenditure is on a new service. A sum of Rs. has been advanced from the Contingency Fund in and an equivalent amount is required to enable repayment to be made to that Fund."

The amount, viz. Rs. / A part of that amount, viz. Rs. can be found by re-appropriation of saving within the grant and a token vote only is now required/ a vote is required for the balance, viz. for Rs. only.

(2)

As soon as the State Legislature has authorised additional expenditure by means of a Supplementary Appropriation Act, the advance or advances made from the Contingency Fund, whether for meeting the expenditure incurred before the Supplementary Estimates were presented, to the State Legislature or after they were so presented, shall be resumed to the Fund to the full extent of the appropriation made in the Act.]

6A.

If, in any case, after the order sanctioning an advance from the contingency fund has been issued in accordance with Rule 5, and before action is taken in accordance with Rule 6, it is found that the advance sanctioned will remain wholly or partly unutilised, an application shall be made to the sanctioning authority for cancelling or modifying the sanction, as the case may be.

6B.

All advances sanctioned from the Contingency Fund to meet expenditure in excess of the provision for the service included in an Appropriation (Vote on Account) Act shall be resumed to the Contingency Fund as soon as the Appropriation Act in respect of the expenditure on the service for the whole year, including the excess met from the advances from the Contingency Fund, has been passed.

7.

A copy of the order resuming the advance, which shall give a reference to the number and date of the order in which the original advance was made and to the Supplementary Appropriation Act referred to in Rule 6, shall be forwarded by the Finance Department to the Accountant-General, Bihar, with a copy to the Department concerned.

8.

An account of transactions of the Fund shall be maintained by the Finance Department in Form A annexed to these rules.

9.

Actual expenditure incurred against advances from the Bihar Contingency Fund shall be recorded in the account relating to the Bihar Contingency Fund in the same detail as it would have been shown if it had been paid out of the Consolidated Fund.

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